

The Sinhastha Mela Sanitation Rules, 1992

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State of Madhya Pradesh - Act

The Sinhastha Mela Sanitation Rules, 1992

MADHYA PRADESH

India

The Sinhastha Mela Sanitation Rules, 1992

Rule THE-SINHASTHA-MELA-SANITATION-RULES-1992 of 1992

Published on 7 February 1992

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The Sinhastha Mela Sanitation Rules, 1992

Published vide Notification No. 3-18-2-92, M.P. Rajpatra (Asadharan), dated 7-2-1992 at pp. 114 (2)-(3)

In exercise of the powers conferred by clause (iii) of sub-section (1) of Section 9 of the Madhya Bharat Sinhastha Mela Act, 1955 (No. 27 of 1955), the State Government hereby makes the following rules, namely :

1.

Name and commencement.

- (i) These rules may be called the Sinhastha Mela Sanitation Rules, 1992.

(ii)

They shall come in force on their publication in the Madhya Pradesh Gazette.

2.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,-

(i)

"Act" means the Madhya Bharat Sinhastha Mela Act, 1955;

(ii)

"Medical Officer of the Circle" means the Medical Officer appointed by the District Magistrate to be incharge of Circle or Circles in the Mela area;

(iii)

"Mela Area" means the area notified as such under sub-section (2) of Section 1 of the Act.

3.

Measures for Sanitation.

- (i) The Chief Health Officer or the Medical Officer of the Circle shall do all things necessary for the proper performance of scavenging of the Mela area.

(ii)

The Chief Health Officer or the Medical Officer of the circle may order the occupier or owner of any building, premises or land in the Mela area to keep them in proper condition and thereafter to maintain them in a clean state, if the property in his opinion is filthy and not being kept properly.

(iii)

No person shall erect private latrines within the Mela area except with the permission of the Chief Health Officer subject to such conditions as may be imposed by him.

(iv)

No person shall practice the trade of shaving or cutting in the Mela area except with the permission of the Chief Health Officer and at such places as may be specified by him for the purpose.

(v)

No person shall case himself in the Mela area except in such places as may be reserved for such purposes.

(vi)

No person shall keep any animal at the Kshipra Ghat except for the purpose of religious ceremony.

(vii)

No person shall bury or cremate corpses within the Mela area except in such places as may be set apart for the purpose.

4.

The following actions are prohibited on any road or any open place, or any public place, street or thoroughfare within the Mela Area :-

(i)

Animal slaughter or cleaning of dead body, selling meat without licence or reckless or furious ride over any animal;

(ii)

Cruelly or want only beating or maltreating or torturing any animal;

(iii)

to leave the cattle stray;

(iv)

causing inconvenience or danger to public by allowing any cattle or convenience to stay in the Mela Area for a period more than that which is required for loading or unloading purposes or for taking in or allowing to get down passengers;

(v)

exposing for sale any uncovered article of food or drink, or selling rotten, spoiled and pre-cut fruits;

(vi)

throwing dirt or laying down any filth or rubbish or any kind of material on any thoroughfare or street so as to obstruct the way;

(vii)

exposing one's self in a public place in a drunken or riotous state or being incapable of taking care of one self;

(viii)

exposing one's body wilfully and indecently or any offensive deformity or disease or committing nuisance by casing oneself or by bathing or washing in any tank or reservoir not being a place set apart for that purpose;

(ix)

neglecting the fencing of any well, tank or other dangerous place or structure;

(x)

washing cattles in the Kshipra river from Railway bridge to Barnagar causeway and from Bherogarh bridge to Mangalnalh Ghat;

(xi)

obstructing or not giving co-operation in the preventive measures regarding health and sanitation.

5.

Measures controlling the sale of Food stuffs.

- (i) The Chief Health Officer or the Medical Officer of the circle will have the right to destroy any over ripe fruits, rotten food stuffs etc. which are not fit for human consumption without paying any compensation whatsoever to the owner.

(ii)

All the hotels and Lodges in the Mela area as well as falling within the jurisdiction of Municipal Corporation, Ujjain shall be inspected as often as required by the Chief Health Officer or his nominee regarding the wholesomeness of food and sanitary facilities provided for the lodgers. His decision in the matter shall be final and binding on the owner of the Hotel. Lodge, against which there shall be no appeal.

6.

Whoever contravenes any of the provisions of these rules shall be punishable under Section 11 of the Act.

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